EUR FIXED RATE
CREDIT FACILITY AGREEMENT

Dated as of

29 August 2023

by and between

H-Securitisation S.A.

acting through its compartment
KrediYa Bond Compartment
as
Lender

and

Enkrateia Holding Limited

as
Borrower

Credit Facility in relation to the funding of

Enkrateia Holding Limited's

CONTENTS

CLAUSE	HEADING	PAGE NUMBER
1.	**DEFINITIONS AND INTERPRETATION**	4
1.1	Definitions	4
1.2	Interpretation	9
2.	**CREDIT FACILITY**	10
2.1	Agreement to Grant Credit Facility	10
2.2	Availability	11
2.3	Use of Proceeds	11
3.	**REPAYMENT**	11
3.1	Repayment Amount - Maturity Date	11
3.2	Early Repayment	11
3.3	Late Payment Interest	12
3.4	Payment Account	12
4.	**INTEREST**	12
5.	**CONDITIONS PRECEDENT**	13
5.1	General Conditions Precedent	13
5.2	Additional Conditions Precedent	13
5.3	Benefit of Conditions Precedent	15
5.4	Borrower's Best Efforts	15
6.	**PAYMENTS**	15
6.1	Payment Accounts	15
6.2	Payments to be made Free and Clear of Taxes	15
6.3	Application of Insufficient Amounts	15
6.4	Other Payments	15
7.	**REPRESENTATIONS AND WARRANTIES**	16
7.1	Representations and Warranties of the Borrower	16
7.2	Continuing Representations and Warranties	18
7.3	Representations and Warranties from the Lender	18
8.	**COVENANTS AND UNDERTAKINGS**	19
8.1	Covenants and Undertakings of the Borrower	19
8.2	Full Force and Effect	21
9.	**ACCELERATION EVENT**	23
9.1	Events Constituting an Acceleration Event	23
9.2	Consequences	23
10.	**INDEMNITIES**	26

11. **ASSIGNMENT AND TRANSFER** 27
12. **SET OFF** 27
13. **CALCULATIONS – ACCOUNTS - CERTIFICATES** 27
14. **REMEDIES, WAIVERS, AMENDMENTS AND CONSENTS** 28
15. **SEVERANCE** 28
16. **COUNTERPARTS** 28
17. **NOTICES – SERVICE OF PROCESS** 28
18. **ACKNOWLEDGEMENT** 29
19. **GOVERNING LAW –JURISDICTION** 29
19.1 Governing Law 29
19.2 Jurisdiction 29
SCHEDULE 1 – FORM OF DRAWDOWN REQUEST 30
SCHEDULE 2 – PAYMENT ACCOUNTS 32
SCHEDULE 3 – FORM OF EARLY REPAYMENT NOTICE 33
SCHEDULE 4 – FINANCE DOCUMENTS 34
SCHEDULE 5 – CORPORATE DOCUMENTS 35
SCHEDULE 6 – LEGAL OPINIONS 38

REMAINDER OF PAGE LEFT BLANK INTENTIONALLY

THIS EUR FIXED RATE CREDIT FACILITY AGREEMENT IS MADE ON THIS 29TH DAY OF AUGUST 2023 BY AND BETWEEN:

H-Securitisation S.A., a company organised and existing under the laws of the Grand Duchy of Luxembourg as a *société anonyme*, having its registered office at 12c, rue Guillaume J. Krolls, L-1882 Luxembourg, Grand Duchy of Luxembourg and registered with the Luxembourg *Registre de Commerce et des Sociétés* under number B246195, acting exclusively for its compartment KrediYa Bond Compartment (the "**Lender**"); and

Enkrateia Holding Limited, a company organised and existing under the laws of the British Virgin Islands with company no. 2018758 and with registered address at OMC Chambers, Wickham Cay 1, Road Town, Tortola, British Virgin Islands (the "**Borrower**")

WHEREAS

(A) the Borrower is the minority shareholder of Krediya CRC SA, Krediya SAS, Stilakrediya SAPI de CV and Crediya Guatemala SA (and, together with any other Krediya entity which may be registered and incorporated from time to time, the "**KrediYa Group**"), fintech companies incorporated in Costa Rica, Colombia, Mexico and Guatemala respectively whose main objective is to assist the unbanked population in such countries to obtain micro loans from mobile devices, hardware that is also provided by the group of companies operating under the KrediYa brand;

(B) the Borrower has requested the Lender to grant it with the Credit Facility (as below defined) in order to fund the Krediya Group business activities and general corporate operations;

(C) the Lender has agreed to provide the Borrower with the Credit Facility in accordance with the terms and subject to the conditions set out in this Agreement.

NOW, THEREFORE, IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1. Definitions

In this Agreement (including the above recitals):

"**Acceleration Events**" means any of the events or circumstances listed in Clause 9 below (and "**Acceleration Event**" shall mean any one of them).

"**Acting in Concert**" means acting together pursuant to an agreement or understanding (whether formal or informal).

"**Agreement**" means this Credit Facility Agreement by and between the Borrower and the Lender, which expression shall include the below recitals and all annexes, appendices, schedules and other attachments of this agreement.

"**Availability Period**" means a period beginning on the latest of the Issue Date and the Closing Date (subject to the satisfaction of all Conditions Precedent) and ending 90 calendar days before the last Interest Payment Date, PROVIDED THAT the Availability Period will early-terminate on the 15th calendar day that

immediately follows the Closing Date, and the Credit Facility will be cancelled and equal to zero on and after that 15th calendar day, if no Drawdown is made and therefore no Loan is granted under this Agreement to the Borrower prior to the above-mentioned 15th calendar day.

"**Bankruptcy**" means (A) any situation where a person or a party: (i) stops or suspends payment of any of its respective debts or is unable to, or admits its inability to, pay its debts as they fall due or loses its creditworthiness; (ii) commences negotiations, or enters into any composition, compromise, assignment or arrangement, with one or more of its creditors with a view to rescheduling any of its Indebtedness (because of actual or anticipated financial difficulties); is declared insolvent, in bankruptcy, is or will be liquidate, wound-up or otherwise dissolved; (iii) becomes the subject of a moratorium and which declared in respect of any of any Indebtedness; and/or (B) any action, proceedings, procedure or step is taken as against any person in relation to: (i) the suspension of payments, a moratorium of any of their respective indebtedness, winding up, dissolution, administration or reorganization (using a voluntary arrangement, scheme of arrangement or otherwise) of any of them; (ii) a composition, compromise, assignment or arrangement with any creditor of their respective creditors; or (iii) the appointment of a liquidator, receiver, administrative receiver, administrator, compulsory manager or other similar officer in respect of any such person and/or any of their respective assets.

"**Borrowed Money(s)**" means any Indebtedness for or in respect of:

(a) borrowing or raising money, including any premium and any capitalised interest on that money; any bond, note, loan stock, debenture, commercial paper or similar instrument;
(b) any bond, note, loan stock, debenture, commercial paper or similar instrument;
(c) any acceptance credit facility or dematerialized equivalent or bill- discounting, note purchase or documentary credit facilities;
(d) monies raised by selling, assigning or discounting receivables or other financial assets on terms that recourse may be had to the Borrower in the event of non-payment of such receivables or financial assets when due;
(e) any deferred payments for assets or services acquired, other than trade credit that is given in the ordinary course of trade and which does not involve any deferred payment of any amount for more than 30 days;
(f) any rental or hire charges under any leases (whether for land, machinery, equipment or otherwise);
(g) any counter-indemnity obligation in respect of any guarantee, bond, standby letter of credit or other instrument issued by a third party in connection with the Borrower's performance of a contract;
(h) any other transaction that has the commercial effect of borrowing (including any forward sale or purchase agreement and any liabilities which are not shown as borrowed money on the Borrower's balance sheet because they are contingent, conditional or otherwise);
(i) any derivative transaction entered into in connection with protection against or benefit from fluctuation in any rate or price (and when calculating the value of any derivative transaction, only the marked to market value shall be taken into account); and/or
(j) any guarantee, contingent or off balance sheet obligation, surety, counter-indemnity or other assurance or undertaking against financial loss that the Borrower has given (alone, jointly and/or severally, directly or indirectly) for any Indebtedness of the type referred to in (x) paragraphs (a) to (i) (both inclusive) of this definition incurred by the Borrower and/or any other person, whether incurred alone, jointly and/or severally; and/or (y) in respect of any guarantee, contingent or off balance sheet obligation, surety, counter-indemnity or other assurance or undertaking against financial loss that the

Borrower has given (alone, jointly and/or severally) for any Indebtedness of the type referred to in (x) above.

"**Business Day**" means a day, other than a Saturday or a Sunday, on which commercial banks are open for general business in Luxembourg and payments and settlements in EUR (and which are required to be dealt with in connection with this Agreement) are dealt with by such banks.

"**Calculation Agent**" means Fundamentals S.A., a company incorporated under the laws of the Grand Duchy of Luxembourg as a "*société anonyme*", having its registered office at 12c, rue Guillaume J. Krolls, L-1882 Luxembourg, Grand Duchy of Luxembourg and registered with the Luxembourg *Registre de Commerce et des Sociétés* under number B209493.

"**Change of Control**". A Change of Control shall be deemed to have occurred if, during the term of this Agreement, (i) the holders of shares or securities representing more than 50% of the combined voting power of the Borrower and/or of each member of the KrediYa Group is acquired by any a third party, (ii) the merger or consolidation of the Borrower and/or of each member of the KrediYa Group with or into another corporation where the shareholders of the Borrower and/or of each member of the KrediYa Group, immediately prior to the consolidation or merger, would not, immediately after the consolidation or merger, own, directly or indirectly, shares representing in the aggregate 50% or more of the combined voting power of the securities of the corporation issuing cash or securities in the consolidation or merger (or of its ultimate parent corporation, if any) in substantially the same proportion as their ownership of the Borrower and/or of each member of the KrediYa Group immediately prior to such merger or consolidation, or (iii) the sale or other disposition of all or substantially all of the Borrower and/or of each member of the KrediYa Group's assets to an entity, other than a sale or disposition by the Borrower and/or of each member of the KrediYa Group of all or substantially all of the Borrower and/or of each member of the KrediYa Group's assets to an entity, at least 50% of the combined voting power of the voting securities of which are owned directly or indirectly by shareholders of the Borrower, immediately prior to the sale or disposition, in substantially the same proportion as their ownership of the Borrower and/or of each member of the KrediYa Group immediately prior to such sale or disposition.

"**Closing Date**" means the Drawdown Date specified in the first Drawdown Request, provided that such date shall occur no later than 1 (one) calendar month from the Issue Date and that all the Conditions Precedent are fulfilled to the satisfaction of the Finance Parties in accordance with Clause 5 below.

"**Conditions Precedents**" means all the conditions precedent (*conditions suspensives*) set out in Clause 5 below (and "Condition Precedent" shall mean any one of them) to be fulfilled to the satisfaction of the Finance Parties no later than the Closing Date.

"**Constitutional Documents**" means in respect of the Borrower and each member of the KrediYa Group, which is a legal entity, its articles of association, memorandum, operating agreement, by-laws and such other documents relating to its incorporation, operations, rights of shareholders and the like.

"**Credit Facility**" means the credit facility to be made available by the Lender to the Borrower in accordance with the terms and subject to the conditions of this Agreement, and to the extent not cancelled or reduced in accordance with the terms and subject to the conditions of this Agreement, PROVIDED THAT in case of any early repayment, the Credit Facility shall be reduced by the principal amount of any such early repayment as provided for in Clause 3.2.1 below.

"**Drawdown**" means the act of borrowing by the Borrower under this Agreement.

"**Drawdown Amount**" means an amount in principal denominated in the Settlement Currency, to be specified by the Borrower in the Drawdown Request, that should be equal to the lesser of (i) the Minimum Drawdown Amount and (ii) the Undrawn Credit Facility, PROVIDED THAT if the Undrawn Credit Facility is less than Minimum Drawdown Amount, the relevant Drawdown Request will be ignored.

"**Drawdown Date**" means the date upon which a Drawdown is to be made hereunder as specified in the relevant Drawdown Request.

"**Drawdown Request**" means a drawdown request substantially in the form attached hereto in *SCHEDULE 1 – FORM OF DRAWDOWN REQUEST*.

"**Early Repayment Date**" means the last Business Day of each calendar quarter, as may be specified in an Early Redemption Notice.

"**Early Repayment Notice**" means a written notice sent by the Borrower to the Calculation Agent and the Lender, notifying each of them that it has decided irrevocably and unconditionally to (i) terminate the Credit Facility (whether or not it was utilized in full); and (ii) repay in full the Early Repayment Amount specified and as provided for in Clause 3.2 below; substantially in the form attached hereto in *SCHEDULE 3 – FORM OF EARLY REPAYMENT NOTICE*.

"**EUR**" means the official currency of the European Union.

"**Finance Documents**" means the following documents: this Agreement, the First Lien Mortgages Deeds, the Constitutional Documents, each document referred to as a "Finance Document" in each of the Finance Documents as defined herein, each of the documents referred to in *SCHEDULE 4 – FINANCE DOCUMENTS* hereto, and any and all related documents and other documents designated as such by the Lender (and "Finance Document" shall mean any one of them).

"**Finance Parties**" means the Calculation Agent and the Lender; "**Finance Party**" shall mean any one of them.

"**First Lien Mortgages Deeds**" means collectively a first lien mortgage over (a) an estate with an area of 64 hectares located on the Gatun River, in Puerto Pilon, in the District and Province of Colon in Panama, and registered to Finca no. 30435286, Location Code 3007, whose measures, boundaries, measurements, surface and description are detailed in the Public Registry of Panama; (b) an estate with an area of 5 hectares located on the Gatun River, in Puerto Pilon, in the District and Province of Colon in Panama, and registered to Finca no. 30435251, Location Code 3003, whose measures, boundaries, measurements, surface and description are detailed in the Public Registry of Panama; and (c) any additional security interest that may be provided by the Borrower, as specified in all the relevant Notes Final Terms.

"**Indebtedness**" means any obligation to pay or repay money, present or future, whether actual or contingent, sole or joint and any guarantee or indemnity of any of those obligations.

"**Interest Payment Date**" means the 31st of March, the 30th of June, the 30th of September and the and 31st of December in each year, PROVIDED THAT the first Interest Payment Date will occur on 30 September 2023 or on any other date that is the last day of the calendar month following the Issue Date; the last Interest Payment Date will occur on the Maturity Date. If an Interest Payment Date does not fall on a Business Day, then with respect to (i) the date on which the interest is to be paid, the Interest Payment Date will fall on the Business Day that immediately precedes the relevant date; however (ii) to determining the actual number of days in an Interest

Period, the relevant Interest Payment Date will occur on the actual date stated above whether it is or not a Business Day.

"**Interest Period**" means a period which begins on and including an Interest Payment Date and ends on but excluding the next following Interest Payment Date, PROVIDED THAT: with respect to (i) the first Interest Period, will begin on an including the Closing Date and will end on but excluding the first Interest Payment Date; and (ii) the second Interest Period, on and including the First Interest Payment Date and ends on but excluding the second Interest Payment Date and so on and so forth in respect of each subsequent Interest Period; PROVIDED FURTHER THAT, without prejudice and subject to Availability Period, if the Drawdown Date in respect of a Drawdown occurs before an Interest Payment Date, then the first Interest Period in respect of that Drawdown will begin on and including its Drawdown Date and end on but excluding the Interest Payment Date that immediately follow that Drawdown Date and so on and so forth in respect of each subsequent Interest Period.

"**Interest Rate**" means a rate that may vary based on the Aggregate Nominal Amount of the Series 1 issuance of the Notes and that can only be calculated and duly communicated by the Lender to the Borrower following the Issue Date and will need to be specified also in each Drawdown Request, but that will never be below 11.50% per annum or above 15.00% per annum.

"**Issue Date**" means the issue date of the Notes, as specified in the relevant Notes Final Terms.

"**Loans**" means the aggregate principal amount of all Drawdowns actually made available plus all Drawdown Request where the Lender is required under this Agreement to make available the Drawdown specified in each such Drawdown Request; and "**Loan**" shall mean any one of them.

"**LTV Ratio**" means the 'loan to value' ratio calculated pursuant to Clause 8.1.8 below.

"**Material Adverse Effect**" means any event or circumstance which, in the reasonable opinion of either the Lender or the Calculation Agent: (i) is likely to materially and adversely affect a party's (other than the Lender) ability to perform or otherwise comply with all or any of its obligations, payment obligations or material obligations under any of the Finance Document to which it is a party; (ii) is likely to materially and adversely affect the business, operations, property, condition (financial or otherwise) or prospects of a person (other than the Lender) who is a party to any Finance Document ; or (iii) is likely to result in any Finance Document not being legal, valid and binding on, and enforceable in accordance with its terms against the person (other than the Lender) who is a party under any such Finance Document and not providing to the Lender security over the assets expressed to be subject to a security interest under the relevant Finance Documents.

"**Maturity Date**" means 30 July 2026 or any other later date as determined by the Lender at its sole discretion, upon request of the Borrower.

"**Minimum Drawdown Amount**" means an amount in principal equal to EUR 100,000.

"**Notes**" means the KREDIYA BOND - SERIES 1 SECURED LIMITED RECOURSE NOTES DUE 30 JULY 2026, with ISIN DE000A3LJQN9, issued on 1 August 2023 or any other Issue Date as may be decided by the Lender's board at its sole discretion and as specified in its relevant offering documentation (the "**Notes Final Terms**"), as well as any further secured limited recourse notes that may be issued in additional Series by the Lender's KrediYa Bond Compartment under the Lender's Up to EUR 1,000,000,000 Programme and that are also linked to this Credit Facility Agreement; and "**Note**" shall mean any one of them.

"**Obligors**" means each party to the Finance Documents (other than the Finance Parties) and which are mentioned in *SCHEDULE 4 – FINANCE DOCUMENTS*; "**Obligor**" shall mean any one of them.

"**Parties**" means each of the Borrower, the Lender and the Calculation Agent; and "**Party**" shall mean any one of them.

"**Payment Accounts**" each the accounts specified in *SCHEDULE 2 – PAYMENT ACCOUNTS*; and "**Payment Account**" shall mean any one of them.

"**Penalty Interest Rate**" means 3.0% per annum.

"**Potential Acceleration Events**" means any events or circumstances specified in Clause 9 below which would, on the giving of notice, expiry of any grace period, making of any determination under any of the Finance Documents or satisfaction of any other condition (or any combination thereof), become an Acceleration Event (and "**Potential Acceleration Event**" shall mean any one of them).

"**Properties**" means the properties listed under letters (a) to (c) in the definition of First Lien Mortgages Deeds and each of them a "**Property**".

"**Securities**" means security interest, pledge, encumbrances, liens or other rights; and "**Security**" shall mean anyone of them.

"**Settlement Currency**" means EUR.

"**Taxes**" means any and all taxes, levies, vat, impost, duties, stamp duties, registration tax, deductions, withholdings (including any penalty or interest payable in connection with the failure to pay, or delay in paying, any of these).

"**Transfer**" means any and all transaction whereby one or more parties transfers – or undertakes to transfer at a future date – the legal and/or beneficial ownership or more generally, the property or any part thereof, of a right or an asset of whatsoever nature to another party, by virtue of any sort of agreement, arrangement, contract or other document whether or not of a binding nature, including but not limited to a sale, the granting of a security interest (other than one which is authorized hereunder), a trust deed, an option or forward agreement, a contribution in kind or otherwise (and "**Transfers**" shall mean more than one Transfer).

"**Undrawn Credit Facility**" means at any one time, an amount in principal equal to the greater of (i) zero and (ii) Credit Facility less Loans.

1.2. Interpretation

In these presents all references to:

1.2.1. A reference to a statute, statutory provision or subordinate legislation is a reference to it as it is in force for the time being, taking account of any amendment, re-enactment or extension and includes any former statute, statutory provision or subordinate legislation which it amends or re-enacts.

1.2.2. Unless the context otherwise requires, a reference to one gender shall include a reference to the other genders;

1.2.3. Unless the context otherwise requires, words in the singular include the plural and in the plural the singular;

1.2.4. A reference to a clause or Schedule is to a clause of, or Schedule to, this Agreement unless the context requires otherwise and references to paragraphs are to paragraphs of the relevant Schedule unless the context requires otherwise;

1.2.5. A reference to directly or indirectly means (without limitation) either alone or jointly with any other person, whether on his own account or in partnership with another (or others), as the holder of any interest in or as officer, employee or agent of or consultant to any other person;

1.2.6. A reference to this Agreement (or any provision of it) or any other document shall be construed as a reference to this Agreement, that provision or that document as it is in force for the time being and as amended, varied or supplemented in accordance with its terms or with the agreement of the relevant parties;

1.2.7. A reference to a person shall include a reference to an individual, firm, company, corporation, unincorporated body of persons, or any state or any agency of any person;

1.2.8. A reference to a time of a day is to Luxembourg time;

1.2.9. A reference to a document in the agreed form is to that document in the form agreed by the parties and initialled by or on behalf of them for identification (including any alteration which may be so agreed);

1.2.10. A reference to a certified copy or conformed copy of a document means a copy certified to be a true, complete and up-to-date copy of the original document, in writing and signed by a director or the secretary of the party delivering the document;

1.2.11. A reference to an amendment includes a novation, re-enactment, supplement or variation (and amended shall be construed accordingly);

1.2.12. A reference to assets includes present and future properties, undertakings, revenues, rights and benefits of every description;

1.2.13. A reference to an authorisation includes an approval, authorisation, consent, exemption, filing, licence, notarisation, registration or resolution;

1.2.14. A reference to a regulation includes any regulation, rule, official directive, request or guideline (whether having the force of law) of any governmental, inter-governmental or supranational body, agency, department or regulatory, self-regulatory or other authority or organisation;

1.2.15. A reference to determines or determined means, unless the contrary is indicated, a determination made at the discretion of the person making it

1.2.16. Headings and sub-headings are for ease of reference only and shall not affect the construction of this Agreement.

2. CREDIT FACILITY

2.1. Agreement to Grant Credit Facility

2.1.1. The Lender hereby agrees to make available to the Borrower, and the

Borrower hereby agrees to borrow from the Lender, the Credit Facility in the Settlement Currency, in an amount not exceeding the amounts set out in Clause 2.2 below, all in accordance with the terms and subject to the conditions set out in this Agreement.

2.1.2. The Credit Facility will be made available in one or more Drawdowns, each equal to the Drawdown Amount, subject to the fulfilment, to the satisfaction of the Lender, of all the Conditions Precedents, as set out in Clause 5 below.

2.2. Availability

The Credit Facility granted by the Lender will be determined by the Lender at its sole discretion and duly communicated to the Borrower following the Issue Date of any issued series of Notes, and it may increase based on the sum of the Aggregate Nominal Amounts of the Series of Notes that are issued by the KrediYa Bond Compartment, PROVIDED THAT it will be less than the sum of such Aggregate Nominal Amounts due to the cash requirements of the Lender to fulfill its contractual duties towards its service providers. The Aggregate Nominal Amount of the Series 1 of the Notes is up to EUR 7,500,000, as specified in the Notes Final Terms of such series.

The Credit Facility will be made available in one or more Drawdowns during the Availability Period, by the Lender to the Borrower on the relevant Drawdown Date, subject to all Conditions Precedent being satisfied in accordance with this Agreement.

No later than 3 (three) Business Days prior to a Drawdown Date, the Borrower shall deliver to the Lender, with the Calculation Agent in copy, a duly completed and signed Drawdown Request specifying the amount of the Drawdown which shall be equal to the Drawdown Amount, failing with this will result in the Drawdown's definitive cancellation and the Borrower not being entitled to the Drawdown and the Lender's possibility to entitled to ignore the Drawdown.

The date of Drawdown Request and the Drawdown Date specified therein shall occur during the Availability Period.

2.3. Use of Proceeds

The use of proceeds will be to fund to allow the Borrower to finance the KrediYa Group business activities and general corporate operations as deemed appropriate in the sole Borrowers' sole discretion.

3. REPAYMENT

3.1. Repayment Amount - Maturity Date

Subject and without prejudice to Clause 3.2 below and subject to no Acceleration Event(s) occurring at any time on or after the Closing Date, the Borrower shall repay on the Maturity Date the full amount of all Loans outstanding (together with interest/accrued interest), in the Settlement Currency, by crediting the Lender's Payment Account for value the Maturity Date.

Any amount paid/repaid hereunder may not be borrowed/re-borrowed again.

3.2. Early Repayment

3.2.1. General. – Subject and without prejudice to Clauses 3.2.2 and 3.2.3 below and subject to no Acceleration Event(s) occurring or threatening to occur at any time on or after the Closing Date, the Borrower shall have the right to repay early all or part of the Loans outstanding (together with interest) at any one time provided always that it notifies in writing to the Calculation Agent and the Lender its decision to make an early repayment (such notice, the "Early Repayment Notice"). To be valid, the Early Repayment Notice shall have been received by the Lender and the Calculation Agent at least 5 calendar days before an Interest Payment Date. The Early Repayment Notice shall specify the principal amount to be repaid early and the date on which such a repayment will be made (such date, the "Early Repayment Date"). Any Early Repayment Notice shall be irrevocable and unconditional and shall reduce accordingly the Credit Facility; failure to repay or non-payment of any such amounts, whether in all or part (and/or interest) shall constitute an Acceleration Event. Any amount paid/repaid hereunder may not be borrowed/re-borrowed again.

3.2.2. Repayment Prior or/After the First Interest Payment Date. – Subject and without prejudice to Clause 3.2.1 above and subject to no Acceleration Event occurring or threatening to occur at any time on or after the Closing Date, the portion of the Loan(s) to be repaid on the Early Repayment Date specified in the relevant Early Repayment Notice will bear interest calculated and determined as by the Calculation Agent as follows:

$$ERA_{n+}\ (\underline{ERA_n \times I \times ACT})$$
$$360$$

Where: (a) "$ERAn$" means the Early Repayment Amount i.e. portion of the Loans to be repaid early; (b) "I" means (i) the Interest Rate per annum; (c) "ACT" means the actual number of calendar days actually elapsed from but including the Interest Payment Date (other than the first Interest Payment Date) which immediately precedes the Early Repayment Date, until and including the Early Repayment Date. It is agreed that the 30/360 day count convention is to be followed, for which a full quarterly interest will always be equal to one fourth of the annual Interest Rate.

3.3. Late Payment Interest

Any and all amounts outstanding, due and owing but unpaid on their respective payment hereunder, shall bear a late interest payment at the rate of the Penalty Interest Rate per day on the basis of a year of 360 days, as calculated and determined by the Calculation Agent and subject to the fulfillment of the conditions set forth by article 1154 of the Luxembourg civil code.

3.4. Payment Account

Any and all payments to be made hereunder shall be made validly if credited into the Payment Account as specified in *SCHEDULE 2 – PAYMENT ACCOUNTS*.

4. INTEREST

Save as otherwise provided for in Clause 3.2.2 above, each Loan made available by the Lender to the Borrower under this Agreement will bear interest as calculated and determined by the Calculation Agent in accordance with the following formula:

$$\frac{Ln \times I \times ACT}{360}$$

Where: "Ln" means the principal amount outstanding of each Loan made available under this Agreement; "I" the Interest Rate; and "ACT" means the actual number of calendar days elapsed during each Interest Period relative to each Ln. It is agreed that the 30/360 day count convention is to be followed, for which a full quarterly interest will always be equal to one fourth of the annual Interest Rate.

Interest will be paid on each Interest Payment Date or, where there is early repayment, interest in respect of the Loan being paid early, will be paid on the relevant Early Repayment Date.

The Interest amount for each Loan will be calculated and duly communicated by the Lender to the Borrower and will need to be specified in each Drawdown Request.

5. CONDITIONS PRECEDENT

5.1. General Conditions Precedent

The obligation of the Lender to make the Credit Facility available to the Borrower is subject to the fulfilment, to the satisfaction of the Finance Parties on or before the Closing Date, of all the following conditions precedents (each such condition precedent, a "**General Condition Precedent**" and "**General Conditions Precedent**" shall mean more than one of them):

5.1.1 *Corporate Powers*. - The Borrower shall deliver to the Lender a certified copy of the relevant board, shareholders' and other resolutions authorizing (i) the Borrower, to enter into the Agreement, deliver it to the Lender, and to bind itself in accordance with the terms hereof, all in accordance with applicable laws and regulations and its articles of association and memorandum and other corporate documents; and (ii) the Borrower to enter into the Finance Documents(s) to which it is a party, deliver it to the Lender, and to bind itself in accordance with the terms thereof, all in accordance with applicable laws and regulations and its articles of association and memorandum and other corporate documents. The Borrower shall also deliver the documents referred to in *SCHEDULE 5 – CORPORATE DOCUMENTS*;

5.1.2 *Certificate*. – The Borrower shall deliver a duly signed original certificate confirming that (i) all representations and warranties made in this Agreement and in the Finance Document to which it is a party, are true, correct and accurate and (ii) to the best of its knowledge, it is not aware of any breach, potential breach of the relevant representations and warranties, nor than any Acceleration Event is occurring or threatening to occur; and (iii) No Material Adverse Effect has occurred nor will occur or is threatening to occur;

5.1.3 *Sufficient Funding* – The Lender shall confirm in writing to the Borrower that (i) the relevant number of Notes have been issued and subscribed and paid in full into the Payment Account for a principal amount above EUR 1,750,000; all conditions precedents in connection with or in respect of the Notes (if any) shall have all been fulfilled to the satisfaction of the Calculation Agent and the Lender*;*

5.1.4 The Borrower shall confirm that and securities conditions under the Finance Documents have been met and are effective;

5.1.5 *Availability Period – Available Facility*. – The making available of the first Drawdown will not result in the Undrawn Credit Facility being less than zero and the first Drawdown will be made during the Availability Period.

5.1.6 *Absence of Breach.* - There has been no breach of any or all of the representations and/or warranties made by the Borrower under this Agreement and the Finance Documents, nor any event of default or acceleration event or any similar, equivalent or identical events under or in respect of any of the Notes or any of the Finance Documents, have occurred or are threatening to occur.

5.1.7 *Lender's Consent.* – the Agent shall give its prior written consent to the first Drawdown by co-signing the relevant Drawdown Request.

Each of the above General Conditions Precedent shall have been fulfilled to the satisfaction of the Finance Parties on or before the Closing Date. If all or some of the General Conditions Precedent are not fulfilled as aforesaid, the relevant Drawdown Request shall be ignored and no Drawdown shall be made available. Notwithstanding this, the Borrower will nevertheless be required to cover and bear all legal and other fees and costs incurred in connection with, the Finance Documents, this Agreement by the Lender.

5.2. Additional Conditions Precedent

The obligations of the Lender to make available the Credit Facility and make available each of the subsequent Drawdowns (other than the first drawdown), are subject tothe satisfaction of the Finance Parties at least two Business Days prior to the Drawdown Date specified in the relevant Drawdown Request, of each of the following conditions precedent (each such condition precedent, an "**Additional Condition Precedent**" and "**Additional Conditions Precedent**" shall mean more than one of them):

5.2.1. *Drawdown Request.* – the Borrower shall have duly signed and completed the required Drawdown Request in respect of the relevant Drawdown for an amount equal to the Drawdown Amount, and delivered it to the Lender and the Calculation Agent; the Lender shall give its prior written consent to any Drawdown by co-signing the relevant Drawdown Request.

5.2.2 *Certificate.* – The Borrower shall deliver a duly signed original certificate confirming that (i) all representations and warranties made in this Agreement and in the Finance Document to which it is a party, are true, correct and accurate and (ii) to the best of its knowledge, it is not aware of any breach, potential breach of the relevant representations and warranties, nor than any Acceleration Event is occurring or threatening to occur; (iii) No Material Adverse Effect has occurred nor will occur or is threatening to occur; and (iv) that all the Corporate Powers specified in 5.1.1 above all still in or have been obtained in respect of the relevant Drawdown being requested;

5.2.3 *First Lien Mortgages Deeds.* - The Borrower shall deliver to the Lender a (a) certified copy of the First Lien Mortgages Deeds to secure the payment and performance in full of all of the Borrower's obligations under this Agreement and a (b) certified copy of the deposit and registration, as applicable, of the First Lien Mortgages Deeds with the relevant register; provided for avoidance of doubt that all fees, taxes, levies and costs related to the provision of the security contemplated referred therein in favor of the Lender shall be borne solely by the Borrower.

5.2.4 *Sufficient Funding - Drawdown.* – The Finance Parties shall confirm in writing to the Borrower that (i) the relevant number of Notes have been issued and subscribed and paid in full into the Payment Account for a

principal amount equal to the Drawdown being requested; and (ii) the investors who have agreed in writing to fund the Lender in connection with this Agreement, has/have paid up the amount of the relevant Drawdown in the Settlement Currency under and in connection with the Notes; all conditions precedents in connection with or in respect of the Notes (if any) shall have all been fulfilled to the satisfaction of the Calculation Agent and the Lender;

5.2.5 *Availability Period – Credit Facility*. – The making available of the Drawdown will not result in the Credit Facility being less than zero and the Drawdown will be made during the Availability Period

5.2.6 *Absence of Breach*. - There has been no breach of any or all of the representations and/or warranties made by the Borrower under this Agreement and the Finance Documents, nor any event of default or acceleration event or any similar, equivalent or identical events under or in respect of any of the Notes or any of the Finance Documents, have occurred or are threatening to occur.

Each of the above Additional Conditions Precedent shall have been fulfilled to the satisfaction of the Finance Parties on or before the Closing Date. Upon satisfaction of all the Additional Conditions Precedent, the Lender shall make available the Drawdown Amount as specified in the relevant Drawdown Request, into the relevant Payment Account. If all or some of the Conditions Precedent are not fulfilled as aforesaid, the Borrower will nevertheless be required to cover and bear all legal and other fees and costs incurred in connection with the Assignment Agreement, this Agreement by the Lender, and the latter will not be required to make the Drawdown available.

Where there is a single Drawdown, all the above Additional Conditions Precedent shall have been satisfied on the Closing Date.

5.3. Benefit of Conditions Precedent

All the Conditions Precedent are provided solely for the Lender's benefit. The Lender may, in its sole and absolute discretion, waive them but in writing only, in whole or in part and with or without conditions, without prejudicing the Lender's right to require subsequent fulfilment of such conditions.

5.4. Borrower's Best Efforts

The Borrower hereby agrees and undertakes (i) to fulfil all the Conditions Precedents forthwith and without delay upon signing this Agreement; and (ii) to procure and ensure that any person (other than the Lender) who is a party to any Finance Document or any person who is not a party to any such document but is required (or whose cooperation is required) to fulfil or help fulfil any such Condition Precedent, does so forthwith and without delay upon signing this Agreement and thereafter in respect of the General Conditions Precedent and the Additional Conditions Precedent.

6. PAYMENTS

6.1. Payment Accounts

All payments to be made hereunder shall be validly made by the party responsible or obligated to make any such payment, if made into the relevant Payment Accounts as and when provided for in this Agreement.

6.2. Payments to be made Free and Clear of Taxes

Any and all payments required to be made by the Borrower hereunder or to the Lender pursuant to any of the Finance Documents, shall be made in the Settlement Currency and in full, without any deduction, set-off or counterclaims and free and clear and net of any Taxes. If any payment to be made hereunder by the Borrower (including, but not limited, the payment of principal, interest or any other amount) becomes or is likely to become the subject of any Taxes, the Borrower shall pay to the Lender all amounts and/or additional amounts required so that the Lender receives a net amount equal to the amount it would had received in the absence of any such Taxes.

6.3. Application of Insufficient Amounts

If the Lender receives a payment that is insufficient to discharge all the amounts then due and payable by the Borrower under any of the Finance Documents, the Lender shall apply that payment in settlement of the obligations of the Borrower in the order determined by the Lender in its absolute discretion. The provisions of this clause shall override any appropriation made by the Borrower.

6.4. Other Payments

Save as otherwise agreed in writing by and between the Borrower and either or both of the Finance Parties, the Borrower shall pay on written demand of the relevant Finance party all fees, legal and other fees, costs, expenses, Taxes and the like in the currency in which they are incurred, including costs, fees, expenses in connection with the satisfaction of the Conditions Precedent or legal opinions.

7. REPRESENTATIONS AND WARRANTIES

7.1. Representations and Warranties of the Borrower

The Borrower represents, warrants and undertakes to the Lender, as follows:

7.1.1. the Borrower is a company or a legal entity, it is a duly incorporated corporation validly existing under the law of its jurisdiction of incorporation; and it has the power to own its assets and carry on its business as it is being conducted;;

7.1.2. it has the power and authority to execute, deliver and perform its obligations under the Finance Documents to which it is a party and the transactions contemplated by each of them. No limit on its powers will be exceeded as a result of the borrowing contemplated by the Finance Documents if applicable or the entering into the relevant Finance Documents;

7.1.3. The execution, delivery and performance of the obligations in, and transactions contemplated by, the Finance Documents do not and will not contravene or conflict with: (i) its constitutional documents, where the Borrower is a legal entity or a company; (ii) any agreement or instrument binding on it or its assets or constitute a default or termination event (however described) under any such agreement or instrument; or (iii) any law or regulation or judicial or official order, applicable to it;

7.1.4. it has taken all necessary action and obtained all required or desirable authorizations to enable it to execute, deliver and perform its obligations

under the Finance Documents to which it is a party and the transactions contemplated by each of them and to make them admissible in evidence in its jurisdiction of incorporation and in any other relevant jurisdiction. Any such authorizations are in full force and effect;

7.1.5. its obligations under the Finance Documents to which it is a party constitute its legal, valid and binding obligations enforceable in accordance with their terms;

7.1.6. its obligations in respect of the Finance Documents to which it is a party, constitute its senior, unsubordinated and secured obligations ranking ahead of any and all security and rights of third parties;

7.1.7. It is not necessary to file, record or enroll this Agreement and any other Finance Document (save as otherwise specifically provided for in the relevant Finance Document) with any court or other authority or pay any stamp, registration or similar Taxes in relation to this Agreement or any other Finance Document or any transaction contemplated by this Agreement or any other Finance Document;

7.1.8. The choice of the law specified as the governing law of each Finance Document will be recognized and enforced in its jurisdiction of incorporation and in any jurisdiction (the "**Relevant Jurisdiction**") where a dispute would be brought to pursuant to the jurisdiction clause specified in each such Finance Document, and any judgment obtained in a Relevant Jurisdiction in relation to a Finance Document will be recognised and enforced in the jurisdiction of incorporation of the Borrower or where it has offices;

7.1.9. No deduction for, or on account of, Taxes is required from any payment that it may or will make under any Finance Document;

7.1.10. (i) No Acceleration Event or Potential Acceleration Event has occurred, is continuing or will occur when any Finance Document comes into force and/or when the Lender makes amounts available to the Borrower hereunder; and (ii) no event similar, identical or equivalent to an Acceleration Event and/or a Potential Acceleration Event (howsoever described), nor any event or circumstance is outstanding which constitutes (or, with the expiry of a grace period, the giving of notice, the making of any determination or any combination thereof, would constitute) a default or termination event (howsoever described), under any other Finance Document, has or will occur in respect of it or any person (other than the Lender) who is a party to a Finance Document;

7.1.11. No other event or circumstance is outstanding which constitutes (or, with the expiry of a grace period, the giving of notice, the making of any determination or any combination thereof, would constitute) an Acceleration event, a Potential Acceleration Event, a default or termination event (howsoever described) under any other agreement or instrument which is binding on the Borrower or to which any of its assets is subject which has or is likely to have a Material Adverse Effect;

7.1.12. The information, in written or electronic format, supplied by, or on behalf of, it to the Lender in connection with this Agreement and the Finance Documents was, at the time it was supplied or at the date it was stated to be given (as the case may be):

(a) if it was factual information, complete, true and accurate in all material respects;

(b) if it was a financial projection or forecast, prepared on the basis of recent historical information and on the basis of reasonable assumptions and was arrived at after careful consideration;

(c) if it was an opinion or intention, made after careful consideration and was fair and made on reasonable grounds; and

(d) not misleading in any material respect, nor rendered misleading by a failure to disclose other information;

7.1.13. There has been no Material Adverse Change in the business, assets, financial condition, trading position or prospects of the Borrower (or by such other person (other than the Lender) which is a party to a Finance Document) since the date of this Agreement and the publication of their respective most recent approved financial statements;

7.1.14. No litigation, arbitration or administrative proceedings are taking place, pending or, to the Borrower's knowledge, threatened against it (or against any person – other than the Lender – who is a party to a Finance Document), any of its directors or any of its assets;

7.1.15. Neither of the Borrower nor any person (other than the Lender) who is a party to a Finance Document, has breached any law or regulation which breach has or is reasonably likely to have a Material Adverse Effect;

7.1.16. (A) The Borrower and any other person (other than the Lender) who is a party to a Finance Document, are the legal and beneficial owner of, and has good, valid and marketable title to, all their respective assets and all such assets are free and clear of any and all Securities (prior to granting the security under the First Liens Mortgage Deeds); (B) The Borrower has full legal title and is the sole and exclusive beneficial owners of its assets; (C) the Borrower will not grant, whether directly or indirectly, any Securities (other than the First Liens Mortgage Deeds) or any security interest in respect of any of its assets during the Availability Period and until and unless all the Loans are repaid in full in accordance with this Agreement together with any accrued and unpaid interest.

7.1.17. The Borrower and each person (other than the Lender) who is a party to a Finance Document, is and will at all times remains under the direct full and exclusive control of the party or parties controlling on the date hereof (where a party is a company or legal entity), who shall at all times (i) be the sole and absolute legal and beneficial owner of all voting rights and rights to dividends in respect of the Borrower or of the Borrower's controlled companies; (ii) be the sole and only person with the right to appoints their directors and dismiss them and who will take actual decisions for them or instruct them on which decision to be taken.

7.1.18. no event similar, identical or equivalent to an Acceleration Event and/or a Potential Acceleration Event (howsoever described), nor any event or circumstance is outstanding which constitutes (or, with the expiry of a grace period, the giving of notice, the making of any determination or any combination thereof, would constitute) a default or termination event (howsoever described), under any document to which the Borrower is a party, has or will occur in respect of it, either as result of any Finance

Document coming into force or of any other reason whatsoever;

7.1.19. The Borrower and on behalf of the parties to a Finance Document (other than the Borrower) is not nor will it be in Bankruptcy as a result of, inter alia, any Finance Document coming into force or of any other reason whatsoever; and

7.1.20. The Borrower is not in default nor has it failed to pay all Indebtedness and/or Borrowed Moneys.

7.1.21. To Borrower's knowledge, the Borrower and the Properties comply in all material respects with all applicable laws and the Obligor(s) has obtained (in its own name) all permits necessary to use and operate the Properties, and all such permits are in full force and effect.

7.1.22. The Obligor(s) owns good, indefeasible, marketable and insurable title to the Properties, free and clear of all liens and Encumbrance.

7.1.23. The Properties are comprised of one or more parcels, each of which constitutes a separate tax lot and none of which constitutes a portion of any other tax lot.

7.1.24. There are no pending or, to the knowledge of Borrower, proposed special or other assessments for public improvements or otherwise affecting the Properties, nor, to the knowledge of Borrower, there are any contemplated improvements to the Properties that may result in such special or other assessments.

7.1.25. The Properties are not located in a flood hazard area as designated by the competent authority.

7.1.26. The Borrower, the Obligor and each member of the KrediYa Group, and to the Borrower's knowledge, each person owning a direct or indirect interest in the Borrower and/or Obligor: (i) is not currently identified on the consolidated list of persons, groups and entities subject to EU financial sanctions and/or in the UN sanction list; (ii) is not a person subject to any trade restriction, trade embargo, economic sanction, or other prohibition under any applicable law

7.2. Continuing Representations and Warranties

The Borrower repeats all the representations and warranties made under Clause 7.1 above on each day that elapses from and including the date hereof until and including the Maturity Date.

7.3. Representations and Warranties from the Lender

The Lender represents and warrants to the Borrower as follows on the date hereof:

7.3.1. it (i) is a duly incorporated public company limited by shares validly existing under the laws of Luxembourg; and (ii) has the power to own its assets and carry on its business as it is being conducted on the date hereof;

7.3.2. it has under the laws of Luxembourg, the power and authority to execute, deliver and perform its obligations under this Agreement and the transactions contemplated herein; and no limit on its powers will be

exceeded under the laws of Luxembourg as a result of it entering into this Agreement and performing its obligations hereunder;

7.3.3. Under Luxembourg law, the execution, delivery and performance of the obligations in, and transactions contemplated by, this Agreement does not and will not contravene or conflict with: (i) its constitutional documents; (ii) any agreement or instrument binding on it or its assets or constitute a default or termination event (however described) under any such agreement or instrument; or (iii) any Luxembourg law or regulation or judicial or official order, applicable to it and in connection with this Agreement;

7.3.4. It has taken all necessary action and obtained all required authorizations, consents, clearance and other permissions under Luxembourg law to enable it to execute, deliver and perform its obligations under this Agreement and the transactions contemplated herein;

7.3.5. Under Luxembourg law, its obligations under this Agreement constitute its legal, valid and binding obligations enforceable in accordance with their terms as against it; and

7.3.6. The choice of Luxembourg law specified as the governing law of this Agreement is a valid and binding choice of law and the submission to the courts of Luxembourg City as competent jurisdiction of this Agreement is a valid and binding choice of jurisdiction.

8. COVENANTS AND UNDERTAKINGS

8.1. Covenants and Undertakings of the Borrower

The Borrower covenants as follows with the Lender and undertakes to comply with all such covenants:

8.1.1. The Borrower will not:

(i) create, or permit to subsist, any Security on or over any of their assets;

(ii) enter into any arrangement under which money or the benefit of a bank or other account may be applied, set-off or made subject to a combination of accounts;

(iii) enter into any other preferential arrangement having a similar effect as described in (iii) above;

(iv) sell, assign, lease, Transfer or otherwise dispose of in any manner (or purport to do so) all or any part of, or any interest in, its assets.

(v) incur or permit to subsist, any obligation for Borrowed Moneys;

(vi) not enter into any amalgamation, demerger, merger or corporate reconstruction;

(vii) make any substantial change to the general nature or scope of its business as carried on at the date of this Agreement that results in a Material Adverse Effect;

(viii) make any changes, variations or amendment to any of the Finances Documents (including this Agreement) without the prior written consent of the Lender; and/or

(ix) waive any condition precedent set out in any Finance Document to

which they are a party.

8.1.2. the Borrower will:

(i) notify the Lender of any Potential Acceleration Event or Acceleration Event (and the same howsoever described under the relevant Finance Document) promptly on becoming aware of their occurrence;

(ii) promptly on request of the Lender, supply it with a certificate signed by two of its director(s) or senior officers of the Borrower certifying to the Lender that no Acceleration Event (and the same howsoever described under the relevant Finance Document) has occurred or is threatening to occur;

(iii) file all tax returns required to be filed within the time period allowed;

(iv) procure that the Obligor does not create or permit to subsist any Security (other than the First Liens Mortgage Deeds) on or over the Properties;

(v) procure that the Obligor does not makes an assignment of the Property for the benefit of its creditors;

(vi) procure that each member of the KrediYa Group file all tax returns required to be filed within the time period allowed;

(vii) pay all taxes shown to be due and payable on such returns or any assessments made against it within the time period allowed;

(viii) procure that each member of the KrediYa Group pays all taxes shown to be due and payable on such returns or any assessments made against it within the time period allowed

(ix) promptly obtain all consents and authorisations necessary (and do all that is needed to maintain them in full force and effect) under any law or regulation to enable them to perform their respective obligations under the Finance Documents and to ensure the legality, validity, enforceability and admissibility in evidence of the Finance Documents in their respective jurisdiction of incorporation and in the jurisdiction where any dispute may be brought to, pursuant to the jurisdiction clause provided for in each relevant Finance Document;

(x) keep and maintain or shall cause to be kept and maintained, on a fiscal year basis, in accordance with the applicable GAAP, books, records and accounts reflecting in reasonable detail all of the financial affairs of Borrower; (b) Borrower shall furnish to Lender annually within one hundred twenty (120) days following the end of each fiscal year a true, complete, correct and accurate copy of the Borrower's (audited) financial statement and of each member of the KrediYa Group for such period, including a statement of operations (profit and loss), a statement of cash flows, a calculation of net operating income, a balance sheet, an aged accounts receivable report and such other information or reports as shall be reasonably requested by Lender. All financial statements and other documents to be delivered pursuant to this Agreement shall (A) be in form as previously provided to Lender (or comparable form), (B) be prepared in accordance with the applicable GAAP.

(xi) Comply and procure that each member of the KrediYa Group complies, in all respects, with all laws and regulations applicable to its business activity, and the failure to do so shall be deemed a Material Adverse Effect;

(xii) shall execute the Payments in accordance with the terms and conditions of this Agreement;

(xiii) supply to the Lender in relation to itself and to each member of the KrediYa Group:

- all documents dispatched to their respective shareholders (or any class of them), or their respective creditors generally, at the same time as they are dispatched;
- details of any litigation, arbitration or administrative proceedings which are current, threatened or pending against any of them or any of their directors as soon as they becomes aware of them, and which might have a Material Adverse Effect;
- provide the Lender with all relevant legal, accounting, tax, financial, technical, and other information relevant to the Finance Documents upon first written demand of the Lender and/or the Calculation Agent; and
- promptly, any further information about their respective financial condition, business and operations that the Lender may reasonably request; and

(xiv) if the Lender is obliged for any reason to comply with "know your customer" or similar identification procedures in circumstances where the necessary information is not already available to it, promptly on the request of the Lender, supply (or procure the supply of) such documentation and other evidence as is reasonably requested in order for the Lender to carry out, and be satisfied that it has complied with, all necessary "know your customer" or other similar checks under all applicable laws and regulations pursuant to the transactions contemplated in the Finance Documents; and

(xv) comply with all its obligations and undertakings in respect of any Finance Document to which it is a party and procure that any person being a party to a Finance Document or having obligations or having made undertakings under any such documents, fully complies with all such obligations and undertakings to the satisfaction of the Lender.

8.1.3 The Borrower will procure and ensure that any person (other than the Lender) who is a party under a Finance Document will make enough payments and distribution to the Borrower so the latter is in a position to meet all its obligations to the Lender PROVIDED ALWAYS THAT this clause shall not be construed as limiting the obligations of the Borrower who shall, in the absence of any such payments or distributions nevertheless be fully liable to meet all its obligations hereunder and/or under any and all Finance Document to which it is a party.

8.1.4 Upon any amounts hereunder becoming due and payable as a result of an Acceleration Event occurring or pursuant to Clause 9 below, the Borrower undertakes, on first demand of the Lender, to request the immediate payment of any and all amounts due under any of the Finance Documents

by the person(s) who are parties to any such documents, and procure that any person (other than the Lender) who is a party under a Finance Document will make all such payments immediately upon such demand made by the Lender.

8.1.5 Save for the First Liens Mortgage Deeds specified in SCHEDULE 4 – FINANCE DOCUMENTS, the Borrower or its controlled companies including without limitation each member of the KrediYa Group will not grant, whether directly or indirectly, any Securities or any security interest in respect of any of its assets during the Availability Period and until and unless all the Loans are repaid in full in accordance with this Agreement together with the accrued and unpaid interest or other amount payable under this Agreement.

8.1.6 The Borrower shall cause that the Obligor at all times keep the Properties in good repair, working order and condition, except for reasonable wear and use. The Borrower shall then cause that the Obligor shall not, without Lender's approval, perform alterations to the Properties (such alterations, "Material Alterations"). The Borrower shall cause the Obligor to do not perform any Material Alteration unless approved in writing by Lender in Lender's reasonable discretion. The Borrower shall reimburse Lender for all actual costs and expenses incurred by Lender, including the fees charged by any professional engaged by Lender in connection with any such Material Alteration. With respect to any Material Alteration, as a condition to Lender's approval, Lender may, at its option, require the Borrower to deliver to Lender security for payment of the cost of such Material Alteration in an amount equal to one hundred twenty five percent (125%) of the cost of such Material Alteration, as estimated by Lender.

8.1.7 The Borrower shall cause to be permitted that agents, representatives and employees of Lender (at Lender's cost and expense if no Acceleration Events has occurred and is continuing), to inspect (a) the Properties or any part thereof, and (b) such books, records and accounts of the Borrower and to make such copies or extracts thereof as Lender shall desire, in each case at such reasonable times as may be requested by Lender upon reasonable advance notice.

8.1.8 Through the term of the Agreement the Borrower shall maintain a LTV Ratio of no more than 100%. The LTV Ratio shall be calculated as the ratio (expressed in percentage) between the outstanding principal balance of the Loans and the market value of the Properties. A calculation of the LTV Ratio shall be made by the Borrower (but verified and confirmed by the Lender) prior to the disbursement of the Loan. The market value of the Properties shall be ascertained pursuant to a valuation report prepared by an independent appraiser chosen by the Borrower but confirmed by the Lender. Preparation of the valuation report may be instructed by the Lender (i)before the disbursement of the Loan (ii) after one (1) year since the previous valuation and (iii) when an Acceleration Event has occurred and is continuing or (iv) in case of a Potential Acceleration Events. The costs of each such valuation report will be borne by the Borrower provided that if a valuation report requested pursuant to point (iv) above does not disclose a Potential Acceleration Events, then the cost and expenses of the valuation report shall be borne by the Lender.

8.2. Full Force and Effect

The covenants made and given by the Borrower under Clause 8 above shall remain

in force and effect from and including the date this Agreement is signed by the Parties and until and including the day any and all amounts due hereunder by the Borrower to the Lender are paid in full.

9. ACCELERATION EVENT

9.1. Events Constituting an Acceleration Event

9.1.1 The Borrower does not (i) pay any sum payable when due under this Agreement and/or any Finance Document; and/or (ii) comply with one or more of any of its obligations or undertakings under this Agreement and/or any Finance Document to which it is a party;

9.1.2 The Borrower breaches any term, condition or covenant contained in a Finance Document;

9.1.3 Any representation, warranty or statement made, repeated or deemed to be made by the Borrower in, or pursuant to, this Agreement and/or any Finance Document to which it is a party is (or proves to have been) incomplete, untrue, incorrect or misleading when made, repeated or deemed to be made;

9.1.4 The Borrower or any person (other than the Finance Parties) who is a party under any of the Finance Documents suspends or ceases to carry on (or threatens to suspend or cease to carry on) all or a material part of its business;

9.1.5 The Borrower or any person (other than the Lender) who is a party under any of the Finance Documents, (i) is unable or admits inability to pay its debts when fall due or within any originally applicable grace period; (ii) becomes due, or capable of being declared due and payable, prior to its stated maturity by reason of an event of default or acceleration event (howsoever described);

9.1.6 Any commitment for any Borrowed Money of the Borrower or any person (other than the Lender) who is a party under a Finance Document is cancelled or suspended by one or more of their respective creditors in respect of any such Borrowed Moneys by reason of an event of default or acceleration event (howsoever described);

9.1.7 Any creditor of the Borrower or any person (other than the Lender) who is a party under a Finance Document, becomes entitled to declare any Borrowed Money of the Borrower or any person (other than the Lender) who is a party under a Finance Document, due and payable prior to its stated maturity by reason of an event of default or acceleration event (howsoever described);

9.1.8 One or more events similar, identical or equivalent to an Acceleration Event and/or a Potential Acceleration Event (howsoever described), any event or circumstance is outstanding which constitutes (or, with the expiry of a grace period, the giving of notice, the making of any determination or any combination thereof, would constitute) a default or termination event (howsoever described), occurs under any Finance Document (other than this Agreement) in respect of the Borrower, and/or any person (other than the Lender) who is a party under a Finance Document;

9.1.9 The Borrower or any person (other than the Lender) who is a party under any of the Finance Documents (i) stops or suspends payment of any of its respective debts or is unable to, or admits its inability to, pay its debts as

they fall due; (ii) commences negotiations, or enters into any composition, compromise, assignment or arrangement, with one or more of its creditors with a view to rescheduling any of its Indebtedness (because of actual or anticipated financial difficulties); is declared insolvent, in bankruptcy, is or will be liquidate, wound-up or otherwise dissolved;

9.1.10 A moratorium is declared in respect of any Indebtedness of the Borrower or any person (other than the Lender) who is a party under a Finance Document; If a moratorium occurs, the ending of the moratorium will not remedy any Acceleration Event caused by that moratorium;

9.1.11 Any action, proceedings, procedure or step is taken as against the Borrower or any person (other than the Lender) who is a party under a Finance Document in relation to: (i) the suspension of payments, a moratorium of any of their respective Indebtedness, winding up, dissolution, administration or reorganization (using a voluntary arrangement, scheme of arrangement or otherwise) of any of them; (ii) a composition, compromise, assignment or arrangement with any creditor of their respective creditors; or (iii) the appointment of a liquidator, receiver, administrative receiver, administrator, compulsory manager or other similar officer in respect of them or any of their respective assets;

9.1.12 Any event occurs in relation to the Borrower or any person (other than the Lender) who is a party under a Finance Document that is analogous to those set out in Clause 9 above in any jurisdiction;

9.1.13 A distress, attachment, execution, expropriation, sequestration or other analogous legal process is levied, enforced or sued out on, or against, or in respect of any assets of the Borrower or any person (other than the Lender) who is a party under a Finance Document;

9.1.14 Any Security (other than the Charge and the pledge under the Pledge Agreements) (if any and created in the absence of any breach under this Agreement) on or over the assets of the Borrower or any person (other than the Lender) who is a party under a Finance Document becomes enforceable;

9.1.15 All or any part of any of the Finance Documents (including this Agreement) is or become invalid, unlawful, unenforceable, terminated, disputed or ceases to be effective or to have full force and effect;

9.1.16 The Borrower or any party to a Finance Document repudiates or shows an intention to repudiate a Finance Document either expressly or through implication;

9.1.17 Any event occurs (or circumstances exist) which, in the reasonable opinion of the Calculation Agent, has or is likely to have a Material Adverse Effect on the Borrower's ability to meet its obligations in respect of the Finance Documents to which it is a party.

9.1.18 One or more events of default, acceleration or early redemption of all or part of the Notes occur at any one time after the date hereof; one or more breaches of any and all obligations, undertakings or duties of the issuer of the Notes occurs at any one time on or after the date hereof.

9.1.19 If the Properties are seized by any of the Obligor's creditors.

9.1.20 If a Change of Control occurs.

9.2. Consequences

(i) If one or more Acceleration Events occur(s), this/these shall be immediately assimilated with a definitive event of default and the Lender shall transmit by mail, first class postage prepaid, to the Borrower, notice of all Acceleration Events known to the Lender, unless such defaults have been cured before the giving of such notice but failure to give notice shall not affect any right of the Lender under this Agreement; said notice shall declare all amounts hereunder immediately due and owing including all fees immediately due and repayable; PROVIDED THAT if one or more Acceleration Events occurs at any one time on or before (i) the first Interest Payment Date, then the Borrower shall repay in full all the Loans outstanding in full plus interest as specified and calculated in accordance with Clause 3.2.2 above; or (ii) the Maturity Date, then the Borrower shall repay in full all the Loans outstanding in full plus interest as specified and calculated in accordance with Clause 3.2.2 above and the Undrawn Credit Facility shall be cancelled;

(ii) declare that all amounts due under and in respect of the Agreement shall bear interest at the Penalty Interest Rate from the date of the Acceleration Event up to and including the date upon which the Borrower repays the amounts due hereunder or remedies the Acceleration Event to the satisfaction of the Lender (with a year of 360 days and based on actual number of days elapsed).

(iii) declare the exercise of all or any one or more of the rights, powers and other remedies which will be available to Lender against the Borrower under this Agreement, and the other Finance Documents including without limitation the First Lien Mortgages Deeds, or at law or in equity at any time and from time to time (including the right to accelerate and declare the outstanding indebtedness to be immediately due and payable), whether or not all or any portion of the indebtedness shall be declared due and payable, and whether or not the Lender shall have commenced any foreclosure proceeding or other action for the enforcement of its rights and remedies under this Agreement.

10. INDEMNITIES

Except where indemnification is already due and covered hereunder as the case may be, the Borrower (an "**Indemnifying Party**") undertakes to the Lender and the Calculation Agent and any of their respective director(s), shareholders or advisor (each an "**Indemnified Party**"; and together, the "**Indemnified Parties**") that if any of the Indemnified Parties incurs or is likely to incur any losses, liabilities, costs, claims, actions, damages, expenses or demands (including, but not limited to, any legal fees, costs and expenses) (a "**Loss**") as a direct or indirect consequence of this Agreement or any other Finance Documents; then the Indemnifying Parties shall pay to the respective Indemnified Party upon presentation of its written statement made in good faith that such Loss has or will be incurred, an amount equal to such Loss and in the currency(ies) in which any such Loss is denominated. If any action or request for payment shall be brought against any Indemnified Party in respect of which a payment may be sought from the Indemnifying Parties under this Clause, the relevant Indemnified Party shall give prompt notice to the Indemnifying Parties thereof and shall (i) consult with the Indemnifying Party regarding its conduct of the action or request for payment brought against the relevant Indemnified Party (a "**Claim**"), (ii) provide the Indemnifying Parties with such information and copies available of such documents relating to the Claim as the Indemnifying Party may reasonably request (provided the relevant Indemnified Party is legally authorized to make any such disclosure), and (iii) implement (but at no cost to the

Indemnified Party) the Indemnifying Party's proposed comments, corrections and additions if such comments, corrections and/or additions are reasonable in the opinion of the Indemnified Party. The relevant Indemnified Party shall not accept any settlement without the prior written consent of the Indemnifying Party, such consent not to be unreasonably withheld.

The Borrower shall indemnify the Lender within ten Business Days of demand against:

(a) any funding or other properly incurred cost or expense; and

(b) any other loss or liability directly sustained or incurred by it as a result of:

(i) the occurrence of an Acceleration Event or Potential Acceleration Event;

(ii) the Lender receiving or recovering all or part of moneys due hereunder other than on the day any such amounts are due.

The indemnity under this Clause shall include any interest that the Lender would have received (as determined by the Lender) if the due payment had been received on the last day of the relevant Interest Period, less the amount the Borrower has actually paid in respect of interest up to the date of actual payment.

Each indemnity in this Agreement: (i) is a separate and independent obligation from the other obligations in this Agreement; (ii) gives rise to a separate and independent cause of action; (iii) applies whether or not any indulgence is granted by the Lender; and (iv) shall continue in full force and effect despite any judgment, order, claim or proof for a liquidated amount in respect of any sum due under this agreement, or any other judgment or order.

11. ASSIGNMENT AND TRANSFER

The Lender may assign, Transfer any and all of its rights, recourse and remedies in respect of any of the Finance Documents to any party of its choice, without the consent of the Borrower and/or of any party which has invested or funded the Lender in respect of this Agreement or under the Notes. The Lender shall only notify the Borrower and/or of any party which has invested or funded the Lender in respect of this Agreement or under the Notes.

The Borrower may not assign or Transfer any of its rights or obligations in respect of any of the Finance Documents.

12. SET OFF

The Lender may apply any credit balance (whether or not then due) to which the Borrower is at any time beneficially entitled on any account with the Lender in (or towards) satisfaction of any sum then due and payable (but unpaid) by the Borrower to the Lender under any Finance Document. If such balances are in different currencies, the Lender may convert either balance at a market rate of exchange for the purpose of the set-off.

The Lender is not obliged to exercise its rights under this Clause, but if the rights are exercised, the Lender shall promptly notify the Borrower of the set-off that has been made.

The above is subject to the proviso specified in Clauses 3.1 and 3.2 above.

13. CALCULATIONS – ACCOUNTS - CERTIFICATES

The Calculation Agent shall maintain accounts evidencing the amounts owed to it by the Borrower, in accordance with its usual practice. Entries in those accounts shall be, but without prejudice to the provisions of the paragraph below, prima facie evidence of the existence and amount of the Borrower's obligations as recorded in them. If the Calculation Agent issues any certificate, determination or notification of a rate or any amount payable under this Agreement, it shall be (in the absence of manifest error) conclusive evidence of the matter to which it relates.

Notwithstanding anything to the contrary in this Agreement, any and all calculations and/or determinations shall be made by the Calculation Agent, all of which shall be final, binding and conclusive on the Parties save any manifest errors.

14. REMEDIES, WAIVERS, AMENDMENTS AND CONSENTS

Any amendment to any Finance Document shall be in writing and signed by, or on behalf of, each relevant party, with the prior written consent of the Lender.

Any waiver of any right or remedy or any consent given under any Finance Document is only effective if it is in writing and signed by the waiving or consenting party. It only applies in the circumstances for which it is given and shall not prevent the party giving it from subsequently relying on the relevant provision. In any event, the prior written consent of the Lender will always be required.

No delay or failure to exercise any right or remedy under any Finance Document by the Lender shall operate as a waiver of any such right or remedy or constitute an election to affirm any of the Finance Documents. No election to affirm any of the Finance Documents on the part of the Lender shall be effective unless it is in writing. No single or partial exercise of any right or remedy on the part of the Lender under any Finance Document shall prevent any further or other exercise or the exercise of any other right or remedy, under this Agreement or any other Finance Document.

15. SEVERANCE

The invalidity, unenforceability or illegality of any provision (or part of a provision) of any Finance Document under the laws of any jurisdiction shall not affect the validity, enforceability or legality of the other provisions.

If any invalid, unenforceable or illegal provision would be valid, enforceable and legal if some part of it were deleted, the provision shall apply with whatever modification as is necessary to give effect to the commercial intention of the parties, provided the Lender gives its prior written approval.

16. COUNTERPARTS

This Agreement may be executed in any number of counterparts, each of which is an original and which, together, have the same effect as if each party had signed the same document.

17. NOTICES – SERVICE OF PROCESS

Each notice or other communication required to be given under, or in connection with, any Finance Document to which both the Lender and the Borrower are parties

shall be:

in writing, delivered personally or sent by pre-paid first-class letter or fax; and sent:

- to the Borrower at the address set out above, at the beginning of this Agreement;

- to the Lender at the address set out above, at the beginning of this Agreement;

or to such other address or fax number as is notified in writing by one party to the other from time to time.

Any notice or other communication that the Lender gives shall be deemed to have been received:

- if sent by fax, when received in legible form; and

- if given by email, at the time of actual delivery as mentioned on the email system;

Any notice or other communication given to the Lender shall be deemed to have been received only on actual receipt.

Service of Process for any and all purposes including service of process in respect of Clauses 19.2 and/or 19.3 below.

18. ACKNOWLEDGEMENT

The Calculation Agent hereby agrees to fulfil the duties set out on each of them under and in respect of this Agreement.

19. GOVERNING LAW - JURISDICTION

19.1. Governing Law

This Agreement is governed by, and construed in accordance with, the laws of Luxembourg.

19.2. Jurisdiction

Each of the parties hereto hereby agrees that the courts of the Luxembourg City shall have the exclusive jurisdiction to hear and determine any suit, action or proceedings that may arise out of or in connection with this Agreement and for such purposes irrevocably submits to the jurisdiction of such courts.

REMAINDER OF PAGE LEFT BLANK INTENTIONALLY

SCHEDULE 1 – FORM OF DRAWDOWN REQUEST

TO: **H-SECURITISATION S.A.**, a company incorporated under the laws of the Grand Duchy of Luxembourg as a "*société anonyme*", having its registered office at 12c, rue Guillaume J. Krolls, L-1882 Luxembourg, Grand Duchy of Luxembourg and registered with the Luxembourg *Registre de Commerce et des Sociétés* under number B 246.195, acting through its compartment KrediYa Bond Compartment (the "**Lender**")

FROM: **ENKRATEIA HOLDING LIMITED** a company organized and existing under the laws of the British Virgin Islands with company no. 2018758 and with registered address at OMC Chambers, Wickham Cay 1, Road Town, Tortola, British Virgin Islands (the "**Borrower**")

CC: **FUNDAMENTALS S.A.**: 12c, rue Guillaume J. Krolls, L-1882 Luxembourg, Grand Duchy of Luxembourg (the "**Calculation Agent**")

Dated: •

Dear Madams, Sirs,

EUR FIXED RATE
CREDIT FACILITY AGREEMENT
Dated as of 29 August 2023
(the " **Agreement**")

1. We wish to borrow under Agreement on the following terms as specified in the Clause 2.2 of the Agreement:

Drawdown Date:	[SPECIFY] (or, if that is not a Business Day, the next Business Day)
Date on which Drawdown should be made available:	
Amount:	[SPECIFY]
Interest Rate:	[SPECIFY]
Interest Amount:	[SPECIFY]
Beneficiary:	[SPECIFY]
Payment Account:	[SPECIFY]

2. We confirm:

a) that each conditions precedent specified in the Agreement is satisfied on the date of this Drawdown Request.

b) no Acceleration Event has occurred and is continuing or will occur on the making available of the amount above.

3. This Drawdown Request is irrevocable.

BORROWER - **ENKRATEIA HOLDING LIMITED**		
SIGNATURE		
NAME	Davide Tomassoni	
TITLE	GM	
DATE	29/08/2023	
PLACE	Panama City Panama	

	LENDER - **H-SECURITISATION S.A.** acting through its compartment KrediYa Bond Compartment	
SIGNATURE		
NAME	Frédéric Salvadore	
TITLE	Sole Director	
DATE	30 August 2023	
PLACE	Luxembourg	

SCHEDULE 2 – PAYMENT ACCOUNTS

PAYMENTS TO THE LENDER

All payments to be made to the Lender – or to be made at the order of the Lender - whether principal, interest or other, shall be validly made if made in the Settlement Currency and into the account as specified in writing by the Lender which shall be an account with a Bank located in a "CRS-in" country (common reporting standard).

PAYMENTS TO THE BORROWER

All amounts in principal to be made available by the Lender to the Borrower under the Agreement shall be paid into the account as specified in writing by the Borrower which shall be an account with a Bank located in a "CRS-in" country (common reporting standard).

REMAINDER OF PAGE LEFT BLANK INTENTIONALLY

SCHEDULE 3 – FORM OF EARLY REPAYMENT NOTICE

TO: **H-SECURITISATION S.A.**, a company incorporated under the laws of the Grand Duchy of Luxembourg as a "*société anonyme*", having its registered office at 12c, rue Guillaume J. Krolls, L-1882 Luxembourg, Grand Duchy of Luxembourg and registered with the Luxembourg *Registre de Commerce et des Sociétés* under number B 246.195, acting through its compartment KrediYa Bond Compartment (the "**Lender**")

FROM: **ENKRATEIA HOLDING LIMITED** a company organized and existing under the laws of the British Virgin Islands with company no. 2018758 and with registered address at OMC Chambers, Wickham Cay 1, Road Town, Tortola, British Virgin Islands (the "**Borrower**")

CC: **FUNDAMENTALS S.A.**: 12c, rue Guillaume J. Krolls, L-1882 Luxembourg, Grand Duchy of Luxembourg (the "**Calculation Agent**")

Dated: •

Dear Madams, Sirs,

EUR FIXED RATE
CREDIT FACILITY AGREEMENT
Dated as of 29 August 2023
(the " **Agreement**")

[*SPECIFY EARLY REPAYMENT IN ACCORDANCE WITH THE RELEVANT CLAUSE***]**

Yours faithfully,

BORROWER - **ENKRATEIA HOLDING LIMITED**		
SIGNATURE		
NAME	Davide Tomassoni	
TITLE	GM	
DATE	29/08/2023	
PLACE	Panama City PANAMÁ	

REMAINDER OF PAGE LEFT BLANK INTENTIONALLY

SCHEDULE 4 – FINANCE DOCUMENTS

Each of the following documents is a Finance Document as specified below:

NUMBER	DOCUMENT	DATE (on or around)	PARTIES	OBLIGOR(S)
1.	EUR FIXED RATE CREDIT FACILITY AGREEMENT	29 August 2023	Enkrateia Holding Limited (as Borrower); H-Securitisation S.A. through KrediYa Bond Compartment (as Lender); and Fundamentals S.A. (as Calculation Agent)	
2.	FIRST LIEN MORTGAGE DEEDS REGISTRATION WITH LOCAL REGISTER	31 July 2023		Fundación Enkrateia
3.	ISSUANCE TERMS OF THE NOTES	15 June 2023		
4.	any and all related documents and other documents designated as such by the Finance Parties and the Borrower (and "**Finance Document**" shall mean any one of them); "**Finance Document**" shall mean any one of them.			

The terms of the Notes are attached hereto in annex to this Schedule and constitute Finance Documents.

Any and all document (i) referred to as a finance document or in any of the above shall also be a Finance Document under this Agreement; and (ii) prepared and/or signed or issued in connection with any Finance Document (including those specified in SCHEDULE 5 – CORPORATE DOCUMENTS shall also be a Finance Document under this Agreement.

REMAINDER OF PAGE LEFT BLANK INTENTIONALLY

SCHEDULE 5 – CORPORATE DOCUMENTS

1. CONSTITUTIONAL DOCUMENTS, RESOLUTIONS AND CERTIFICATES

1.1 A copy of the constitutional documents of the Borrower, of the Obligor(s) and each member of the KrediYa Group.

1.2 A copy of the resolutions duly passed by the Borrower's board of directors:

(a) approving the entry into, terms of and transactions contemplated by this Agreement and the First Liens Mortgage Deeds (to which is a party) resolving that it execute, deliver and perform these agreements;

(b) authorizing a specified person or persons to execute this agreement on its behalf, to give all notices (including any notice to drawdown) and take all other action in connection with the documents specified under Clause 1.2. b) above; and

(c) confirming that entry into the documents specified under Clause 1.2. b) above are in the commercial interest of the Borrower (stating the reasons for such conclusion).

1.3 A copy of the resolutions duly passed by each of the Obligor(s) (other than the Borrower) (i) approving the entry into, terms of and the transactions contemplated by the Finance Documents (to which are parties) resolving that they execute, deliver and perform these agreements; (ii) authorizing a specified persons or persons to execute the respective Finance Documents (to which are parties) and to take all other action in connection with their valid perfection, recording and enforceability against third parties.

1.4 A sample of the signature of each person authorised by the resolutions referred to in paragraph 1.2 and 1.3 of this Schedule 5.

1.5 A certificate, signed by a director of the Borrower, confirming that borrowing in respect of the Agreement would not mean any borrowing or similar limit binding on the Borrower would be exceeded.

1.6 A certificate, signed by a director of the Borrower, confirming that each copy document relating to it that it has provided under this Schedule 5 is correct, complete and in full force and effect at a date no earlier than the Effective Date.

1.7 Proof of solvency or a certificate of good conduct of the Borrower, the Obligor and of each member of the KrediYa Group

1.8 A true, complete and correct as of the date hereof organizational chart showing the persons that have any ownership interest in, or right of control, directly or indirectly, in the Borrower, the Obligor and each of the member of the KrediYa Group.

1.9 Legal opinions issued by the Borrower's counsel substantially in the form attached as Schedule 6 of the Agreement confirming (a) the due incorporation, capacity of the Borrower and the Obligor to execute the Finance Documents to which they are a party and (b) the validity and enforceability of the Agreement and the First Liens Mortgage Deeds.

2. FINANCIAL

A copy of the latest available (audited) financial statements Borrower, the Obligor

and of each member of the KrediYa Group.

3. OTHER DOCUMENTS AND EVIDENCE

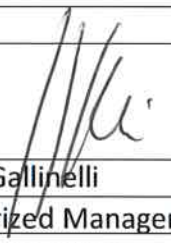
A certified copy of any other authorization, document, opinion or assurance that the Lender considers necessary or desirable for entering into this Agreement, providing the Loans or to make this Agreement valid and enforceable.

REMAINDER OF PAGE LEFT BLANK INTENTIONALLY

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be duly executed as of the day and year first above written.

BORROWER - **ENKRATEIA HOLDING LIMITED**		
SIGNATURE		
NAME	Davide Tomassoni	
TITLE	GM	
DATE	29/08/2023	
PLACE	Panama City PANAMÁ	

LENDER - **H-SECURITISATION S.A.** acting through its compartment KrediYa Bond Compartment		
SIGNATURE		
NAME	Frédéric Salvadore	
TITLE	Sole Director	
DATE	30 August 2023	
PLACE	Luxembourg	

CALCULATION AGENT - **FUNDAMENTALS S.A.**		
SINGATURE		
NAME	Frédéric Salvadore	Luca Gallinelli
TITLE	Authorized Manager	Authorized Manager
DATE	30 August 2023	30 August 2023
PLACE	Luxembourg	Luxembourg

SCHEDULE 6 – LEGAL OPINIONS

Part 1 – The Borrower

1. **Status**
   The Borrower is a limited liability company formed for an unlimited duration and legally existing under the laws of the British Virgin Islands.

2. **Power, authority and authorisation**
   The Borrower has the corporate power and authority to enter into and perform the Finance Documents to which it is party and has taken all necessary corporate actions to authorize the execution of the Finance Documents to which it is party.

3. **Execution**
   The Finance Documents have been duly signed on behalf of the Borrower by an authorized members of the board of directors of the Borrower or by the person duly authorized to sign pursuant to the resolutions taken by the board of directors and hence have been duly executed by the Borrower.

4. **Non-conflict**
   The execution and the performance by the Borrower of the Finance Document (to which it is a party) do not violate currently applicable laws of the British Virgin Islands or the law provision in relation to limited liability companies or the memorandum and articles of association of the Borrower.

5. **No registration**
   It is not necessary in order to ensure the enforceability or admissibility in evidence of the Finance Document, that they be notarized or subject to any other formality or be filed, recorded, registered or enrolled with any court or official authority in the British Virgin Islands.

6. **No consent**
   No authorisations, approvals or consents of any authority in the British Virgin Islands are required in connection with the execution or performance by the Borrower of the Finance Documents (to which it is a party).

7. **Certificates**
   According to the certificate of good standing, on the day immediately prior to the date of issuance of such certificate, no court order was recorded pursuant to which the Borrower had been adjudicated bankrupt or become subject to, or benefited from, a reprieve from payment, controlled management or composition with creditors, judicial liquidation or judicial appointment of a temporary administrator.

8. **Submission to jurisdiction**
   The submission to the jurisdiction of the courts of Luxembourg-City as provided in the Loan Agreement to which the Borrower is a party, is valid and binding upon the Borrower under the law of the British Virgin Islands and will be upheld by the courts of the British Virgin Islands.

9. Application of governing law

The choice of Luxembourg law as the governing law of the provisions of Loan Agreement will be recognised and given effect by the courts of the British Virgin Islands.

10. Enforcement of judgments

A final and conclusive judgment (based on legal proceedings commenced by a valid service of process) obtained against the Borrower in a court of Luxembourg, in any suit, action or proceedings with respect to the Loan Agreement would be enforced by the courts of the British Virgin Islands in compliance with the terms of the Hague Convention on Recognition and Enforcement of Foreign Judgments in Civil or Commercial Matters.

11. Valid obligations

The obligations expressed to be assumed by the Borrower in the Loan Agreement constitute its legal, valid and binding obligations under the law of the British Virgin Islands enforceable in accordance with their terms.

12. No stamp duties

There are no stamp, registration, documentary, or similar taxes, duties or charges under the laws of the British Virgin Islands payable in connection with the execution of the Loan Agreement.

Part 2 – The Obligor

1. Status

The Obligor is private interest foundation formed for an unlimited duration and legally existing under the laws of the Republic of Panama.

2. Power, authority and authorisation

The Obligor has the corporate power and authority to enter into and perform the Finance Documents to which it is party and has taken all necessary corporate actions to authorize the execution of the Finance Documents to which it is party.

3. Execution

The Finance Documents have been duly signed on behalf of the Obligor by an authorized members of the founding council of the Obligor or by the person duly authorized to sign pursuant to the resolutions taken by the founding council and hence have been duly executed by the Obligor.

4. Non-conflict

The execution and the performance by the Obligor of the Finance Document (to which it is a party) do not violate currently applicable laws of the Republic of Panama or the law provision in relation to private interest foundation or the constitutional documents of the Obligor.

5. No consent

No authorisations, approvals or consents of any authority in the Republic of Panama are required in connection with the execution or performance by the Obligor of the Finance Documents (to which it is a party).

6. Certificates

According to the certificate of good standing, on the day immediately prior to the date of issuance of such certificate, no court order was recorded pursuant to which the Obligor had been adjudicated bankrupt or become subject to, or benefited from, a reprieve from payment, controlled management or composition with creditors, judicial liquidation or judicial appointment of a temporary administrator.

7. Valid obligations

The obligations expressed to be assumed by the Obligor in the First Lien Mortgage Deeds constitute its legal, valid and binding obligations under the law of the Republic of Panama enforceable in accordance with their terms.

8. Creation of security interest

Each of the First Lien Mortgage Deed, once duly perfected in accordance with the laws of Panama, will create a valid, enforceable and perfected mortgage over the Properties.